



POLICE DEPARTMENT CITY OF NEW YORK

January 25, 2017

MEMORANDUM FOR: Police Commissioner

Re: Detective Joseph Franco
Tax Registry No. 925313
Narcotics Borough Manhattan South
Disciplinary Case No. 2015-14396

Charges and Specifications:

1. Detective Joseph Franco, assigned to Narcotic Borough Bronx, on or about and between July 26, 2015 and July 29, 2015, on approximately three occasions, failed to follow his Commanding Officer's directive to take his "meal" in the confines of Patrol Borough Bronx, to wit: Detective Franco took his "meal" in Manhattan.

P.G. 203-03, Page 1, Paragraph 2 - COMPLIANCE WITH ORDERS

Appearances:

For the Department: Scott Rosenberg, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Eric Sanders, Esq.
The Sanders Firm, P.C.
230 Park Avenue, Suite 1000
New York, NY 10169

Hearing Dates:

November 18 and 29, 2016

Decision:

Guilty

Trial Commissioner:

ADCT Nancy R. Ryan

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 18 and 29, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The Department called Lt. Persio Polanco and Inspector Christopher McCormack as witnesses. Respondent called Detective [REDACTED] and Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

It is undisputed that prior to July 26, 2015, Inspector McCormack, as commanding officer, directed his subordinate, Respondent, not to take his meal outside the borough of the Bronx. The direction had been given to Respondent multiple times. Prior to July 26, 2015, Lieutenant Polanco, also Respondent's superior officer, directed Respondent not to leave the Bronx for his meal. (Tr. 90-91) On July 26, 2015, Respondent, during his tour of duty left the Bronx and travelled to Manhattan for his meal. He hadn't received any permission to do so on that date. He was aware on that date that he had been directed not to leave the borough of the Bronx for meal. (Tr. 90-91) Similarly, on July 28th and 29th, 2015, Respondent travelled to Manhattan for meal during his tour of duty and had not received permission from a supervisor on either date to do so.

Respondent in his testimony has admitted to the facts as charged. His position, however, is that [REDACTED] it is a matter of personal safety that he not eat in the Bronx area where he works. He views the order to eat meals in the Bronx as an unlawful order. The defense has also argued that it is an issue of selective enforcement since Inspector McCormack testified that there was no Patrol Guide rule that he had to eat in the borough of the Bronx.

Respondent testified that [REDACTED] his safety is the "foremost thing" on his mind. (Tr. 81-82) He makes sure he is not being followed on his way to and from work [REDACTED] (Tr. 84) He has been followed and threatened on multiple occasions. Respondent testified that he expressed his concern about safety issues to his supervisors, Lieutenant Bolte and Inspector McCormack. (Tr. 85) He told Lieutenant Bolte that he had [REDACTED] [REDACTED] inside Bronx restaurants and had concerns about eating in the same borough where [REDACTED] took place. Respondent testified that Lieutenant Bolte didn't agree with him. (Tr. 86) He also testified that he had multiple discussions with Inspector McCormack about the issue too. He explained that he went into Manhattan because he wanted to reduce the chances of running into someone who would recognize him [REDACTED] [REDACTED]. Respondent further testified that Inspector McCormack told him he would check with the captain about the issue and get back to him. (Tr. 87)

Inspector McCormack testified that Respondent never raised safety issues with him, but rather told him he wanted to get special juice at the locations of 86th Street and Broadway and 86th Street and Lexington in Manhattan. Respondent acknowledged in his testimony that Inspector McCormack did ask him where he went to meal in Manhattan

and he told him he went to those locations. (Tr. 87) Inspector McCormack further testified that it did not compromise [REDACTED] safety to eat in the Bronx since it was a large borough and there were numerous areas where [REDACTED] could eat. (Tr. 51-52) Respondent estimated that he went about five to seven miles from the Bronx to where he ate in Manhattan. (Tr. 98-99)

The defense also called Detective [REDACTED] as a witness. He was assigned to [REDACTED] Narcotics for approximately eight years until October 2016. (Tr. 65) He worked [REDACTED] for about seven years. He knew [REDACTED] who had been assaulted and he had a gun drawn on him a couple of times. (Tr. 67) Detective [REDACTED] testified that no supervisor from [REDACTED] Narcotics ever had a discussion with him as to how to ensure his safety [REDACTED] (Tr. 68) He did have discussions with other [REDACTED] about how it was not safe to eat in the same place where they did operations, but he never spoke to his supervisors about it. (Tr. 69-70) He didn't recall Inspector McCormack during a meeting telling [REDACTED] they had to eat in the Bronx. (Tr. 71) In his police department training [REDACTED] he was told not to put himself in a position where he didn't feel safe and to talk to a supervisor if he did. (Tr. 72) He acknowledged on cross-examination that he did live in [REDACTED] while he worked [REDACTED] there. (Tr. 73)

As Respondent has admitted to the facts of the charge, the question becomes whether it is misconduct. I find that it is.

Respondent was given an order by two superior officers, Inspector McCormack and Lieutenant Polanco, to take his meals in the Bronx and yet he disobeyed that order to eat in Manhattan on three documented occasions. Under the general employment law

principle of "obey now, grieve later," an employee must promptly obey a supervisor's order, even if he believes it to be improper, and then may later dispute its propriety through formal grievance procedures. See *Fire Dep't v. Anonymous*, OATH Index No. 1273/08 (June 12, 2008), citing, *Ferrari v. N.Y. State Thruway Auth.*, 62 N.Y.2d 855 (1984); *Dep't of Envtl. Prot. v. Mosley*, OATH Index No. 1893/05 (Feb. 28, 2006), *aff'd in part, rev'd in part, modified on penalty*, Comm'r Dec. (Apr. 5, 2006), *aff'd*, NYC Civ. Serv. Comm'n Item No. CD06-16-SA (Dec. 29, 2006). There are three well-recognized exceptions to this principle: where the order is clearly outside of the supervisor's authority; where the order is unlawful; or where obeying would threaten the health or safety of an employee or other person. See *id.*, citing, *Ferrari*, 64 N.Y.2d at 856-57; *Reisig v. Kirby*, 62 Misc. 2d 632 (Sup. Ct., Suffolk County 1968), *aff'd*, 32 A.D.2d 1008 (2d Dep't 1969).

Respondent attempts to invoke the safety exception, contending that he believed, [REDACTED] that his safety would be compromised by taking meal in the Bronx. For this exception to apply, an employee must demonstrate an objectively reasonable belief that an imminent threat justifies disobedience of an order and that said threat was the reason for disobedience of the order. See *Fire Dep't v. Anonymous*, *supra* at 11-12; *Dep't of Envtl. Prot. v. Nuccio*, OATH Index Nos. 2360/08 & 2361/08 (Sept. 26, 2008), citing, *Human Res. Admin. v. Dottin*, OATH Index No. 1260/02 (Oct. 22, 2002) (dismissing charges where employee with ongoing medical conditions, including allergies, asthma, and heart disease, refused to report to an office located a short distance from Ground Zero in December 2002); *Dep't of Sanitation v. Jones*, OATH Index No. 2186/99, at 5-6 (Oct. 5, 1999) (employee's reasonable belief that failure to complete an

inspection posed a significant safety hazard, justified refusal to operate a vehicle); *cf. Health and Hosps. Corp. (Coler-Goldwater Hosp.) v. Hinkson*, OATH Index No. 163/04 (Nov. 21, 2003) (employee failed to show that refusal to work mandatory overtime posed an immediate risk to health or safety).

I find that Respondent failed to demonstrate that he possessed an objectively reasonable belief that taking his meal in the Bronx, as ordered, would prove an imminent threat to his safety. He cited no specific threat or issue that existed at the time to lend credence to his safety concerns. He offered no evidence that [REDACTED] try to remove themselves from their assigned borough during meals and off-duty hours. In sum, Respondent's testimony regarding his belief that his safety was jeopardized seems, at best, a subjective concern, and, at worst, a self-serving attempt at deflecting from his blatant disobedience on multiple occasions.

Moreover, Respondent's claims that he was at risk if he patronized a Bronx establishment for a meal is undercut by several basic facts. First, the Bronx is a very large borough. It seems more likely than not that there were areas of the Bronx and specific restaurants within the borough that were not associated with his [REDACTED] activities where he could have chosen to eat. Secondly he was hardly distancing himself from the Bronx by merely going a short distance into Manhattan to eat. If it was that quick and easy for Respondent to get to Manhattan it seems likely that the same would hold true for any possible people he feared running into. A third consideration is that Respondent's own witness testified that he actually lived in [REDACTED] during the time he was [REDACTED] and in fact feels safe enough [REDACTED] with [REDACTED] This is someone who worked [REDACTED] and while he tried to

minimize his contact with [REDACTED] when he testified, it still remains a fact that he chose [REDACTED] and he would have contacts associated with [REDACTED]

Section 203-03(2) of the Patrol Guide requires members of the service to "obey lawful orders and instructions of supervising officers." Respondent may have other forums in which to express his concerns, but there is no credible evidence to support a finding that he had an objectively reasonable belief that an imminent threat justified disobedience of an order and that said threat was the reason for his disobedience.

I therefore find Respondent Guilty.

PENALTY RECOMMENDATIONS

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on March 1, 2000. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department Advocate has requested a penalty of the forfeiture of ten vacation days. In a prior case, a fifteen-year police officer with no prior disciplinary record forfeited 15 vacation days for, while off duty, discourteously refusing an on-duty officer's order that he exit his car and roll down his windows. *Disciplinary Case No. 2012-8170*, (February 13, 2015). In this case the Respondent was actually on-duty and directly disobeyed orders on three occasions. The importance of officers obeying orders

from their supervisors is of paramount importance in a para-military organization such as the Department.

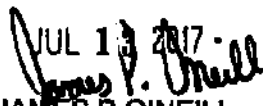
Accordingly, I recommend that Respondent's penalty be the forfeiture of 17 vacation days.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPROVED

JUL 13 2017

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE JOSEPH FRANCO
TAX REGISTRY NO. 925313
DISCIPLINARY CASE NO. 2015-14396

Respondent was appointed to the Department on March 1, 2000. [REDACTED]
[REDACTED] He has received four medals for Excellent Police Duty, one Honorable Mention and one Combat Cross. He has no disciplinary history. There are no performance evaluation records available for Respondent.

For your consideration.

Nancy R. Ryan
Assistant Deputy Commissioner Trials